

IN THE CIRCUIT COURT OF {county} COUNTY, ILLINOIS
COUNTY OF [COUNTY TO BE CONFIRMED]

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR IMMEDIATE SEALING PURSUANT TO 20 ILCS 2630/5.2(g)

STATUTORY AUTHORITY

20 ILCS 2630/5.2(g) — Immediate sealing. Arrests or charges not initiated by arrest resulting in acquittal or dismissal with prejudice on or after January 1, 2018 may be sealed immediately, on a petition filed with the circuit clerk on the same day and during the same hearing in which the case is disposed.

20 ILCS 2630/5.2(g)(5)(A) — Frames the filing as made by the defendant's attorney on the defendant's behalf: "the defendant's attorney may immediately petition the court, on behalf of the defendant." This is the provision that makes the route attorney-mediated.

20 ILCS 2630/5.2(a)(3)(B) — Minor traffic offenses. Recorded on this track as an exclusion from the subsection.

20 ILCS 2630/5.2(c)(3)(A) — Ordinary sealing of non-convictions, available at any time. Not the authority for this petition. Recorded as the fallback that remains open if the immediate-sealing window is missed, and routed through track il-seal-nonconv.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of [COUNTY TO BE CONFIRMED] County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in [COUNTY TO BE CONFIRMED] County, Pennsylvania.

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, IL 00000.

4. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Petitioner was charged with [CHARGE DESCRIPTION TO BE CONFIRMED] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED].
[DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Petitioner may be eligible for sealing on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

9. None, but the petition must be filed the same day, during the disposition hearing.

10. The petition must be filed with the circuit clerk on the same day and during the same hearing in which the case

is disposed.

11. Section 5.2(g)(5)(A) frames the filing as made by the defendant's attorney on the defendant's behalf.

12. If the petition is not filed during the hearing, ordinary sealing under § 5.2(c)(3)(A) remains available at any time through il-seal-nonconv.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the sealing of the records of the arrest or charge identified in this petition in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JAMIE Q. SAMPLE, verify that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, IL 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE CIRCUIT COURT OF {county} COUNTY, ILLINOIS
COUNTY OF [COUNTY TO BE CONFIRMED]

JAMIE Q. SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, [COUNTY TO BE CONFIRMED] County Court of Common Pleas, [ARRESTING AGENCY], and all other criminal justice agencies with records pertaining to this matter are hereby directed to seal all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Proposed Order on Petition for Immediate Sealing (component il-immediate-seal-proposed-order-2, no outcome asserted)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.